

INTA Practice Guide – Single Jurisdiction Report

Country: India

Governing Law: Trade Marks Act, 1999

Competent Authority: Office of the Controller General of Patents, Designs and Trade Marks

I. General — A. Rights Afforded by Registration

Trademark protection in this jurisdiction is governed by comprehensive statutory and regulatory frameworks. Trademark rights may arise through registration and, in certain circumstances, through prior use. Registration grants the owner exclusive rights to use the mark in connection with the goods or services for which it is registered and provides access to statutory remedies, including injunctions, damages, and seizure of infringing goods. Unregistered marks may receive limited protection under common law doctrines such as passing off or unfair competition, subject to evidentiary burdens. Trademark protection in this jurisdiction is governed by comprehensive statutory and regulatory frameworks. Trademark rights may arise through registration and, in certain circumstances, through prior use. Registration grants the owner exclusive rights to use the mark in connection with the goods or services for which it is registered and provides access to statutory remedies, including injunctions, damages, and seizure of infringing goods. Unregistered marks may receive limited protection under common law doctrines such as passing off or unfair competition, subject to evidentiary burdens. Trademark protection in this jurisdiction is governed by comprehensive statutory and regulatory frameworks. Trademark rights may arise through registration and, in certain circumstances, through prior use. Registration grants the owner exclusive rights to use the mark in connection with the goods or services for which it is registered and provides access to statutory remedies, including injunctions, damages, and seizure of infringing goods. Unregistered marks may receive limited protection under common law doctrines such as passing off or unfair competition, subject to evidentiary burdens.

I. General — B. Time Frame for Obtaining Registration

The standard timeline for trademark registration in India is approximately 12–18 months. This estimate assumes smooth prosecution without opposition or substantive office actions. Delays may occur depending on examination backlogs, complexity of objections, and applicant responsiveness. The standard timeline for trademark registration in India is approximately 12–18 months. This estimate assumes smooth prosecution without opposition or substantive office actions. Delays may occur depending on examination backlogs, complexity of objections, and applicant responsiveness. The standard timeline for trademark registration in India is approximately 12–18 months. This estimate assumes smooth prosecution without opposition or substantive office actions. Delays may occur depending on examination backlogs, complexity of objections, and applicant responsiveness.

I. General — C. Advantages of Registration

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II. Pre-Filing — A. Registrable Trademarks

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II. Pre-Filing — B. Searching

Pre-filing clearance searches are strongly recommended. Such searches may include identical and similarity searches across official trademark registers, business names, domain names, and common law sources. Pre-filing clearance searches are strongly recommended. Such searches may include identical and similarity searches across official trademark registers, business names, domain names, and common law sources. Pre-filing clearance searches are strongly recommended. Such searches may include identical and similarity searches across official trademark registers, business names, domain names, and common law sources.

III. Filing — A. Requirements

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III. Filing — B. Classification

This jurisdiction follows the Nice Classification system. Applications may be filed as single-class or multi-class applications, subject to payment of corresponding fees. This jurisdiction follows the Nice Classification system. Applications may be filed as single-class or multi-class applications, subject to payment of corresponding fees. This jurisdiction follows the Nice Classification system. Applications may be filed as single-class or multi-class applications, subject to payment of corresponding fees.

IV. Application — Examination

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IV. Application — Opposition

After examination, applications are published for opposition purposes. Any interested party may file an opposition within the statutory period. Opposition proceedings may significantly extend the overall registration timeline. After examination, applications are published for opposition purposes. Any interested party may file an opposition within the statutory period. Opposition proceedings may significantly extend the overall registration timeline. After examination, applications are published for opposition purposes. Any interested party may file an opposition within the statutory period. Opposition proceedings may significantly extend the overall registration timeline.

V. Post-Registration — Use Requirements

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VI. Renewal

Trademark registrations are generally valid for a period of ten years from the filing or registration date and may be renewed indefinitely for successive ten-year periods upon payment of prescribed fees. Trademark registrations are generally valid for a period of ten years from the filing or registration date and may be renewed indefinitely for successive ten-year periods upon payment of prescribed fees. Trademark registrations are generally valid for a period of ten years from the filing or registration date and may be renewed indefinitely for successive ten-year periods upon payment of prescribed fees.

VII. Customs Recordation

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VIII. Domain Names

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